

		The Clerk shall promptly transmit a certified copy of this order to the levying officer (Code Civ. Proc., § 703.580, subd. (e)) and give notice of the ruling.
6.	2025-1524146 Salgado vs. Orange County Transportation Authority (OCTA)	Defendant Orange County Transportation Authority's ("OCTA") demurrer to Plaintiff Jose Salgado's First Amended Complaint is sustained with 15 days leave to amend. Defendant's special demurrer is overruled. The First Amended Complaint is not so confusing that Defendant cannot determine how to respond. (See <i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139.) A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) <u>1st cause of action for motor vehicle negligence</u> The Government Tort Claims Act provides that public entities are not liable for an injury except as otherwise provided by statute. (Gov't Code § 815(a); see also <i>Eastburn v. Regional Fire Protection Authority</i> (2003) 31 Cal.4th 1175, 1183 ("direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714," which provides for liability based on willful or negligent acts).) This cause of action is not based on any statute. While Plaintiff cites to Vehicle Code § 17001 in his opposition, this is not identified in the First Amended Complaint as a basis for liability. <u>2nd cause of action for Gov't Code, § 815.2 liability</u>

		Gov. Code, § 815.2 provides in part that a “public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” Here, Plaintiff alleges only that DOE Bus Driver, as an employee of Defendant OCTA was acting within the course and scope of his employment, when he “recklessly and carelessly operated the [OCTA bus],” “failing to follow the proper procedures and guidelines with regard to safely transporting passengers and following safe driving techniques, causing Plaintiff to sustain injuries including but not limited to his left hand, left shoulder, left elbow, and neck.” Plaintiff fails to state facts to support this claim as he does not allege what actually happened to cause Plaintiff’s injuries. Claims against government entities must be pled with particularity. (See <i>Lopez v. Southern Cal. Rapid Transit Dist.</i> (1985) 40 Cal.3d 780, 795.) <u>3rd cause of action for common carrier liability pursuant to Civ. Code, § 2100, 2101 and 2103</u> Like with the second cause of action, Plaintiff fails to allege facts showing how Defendant violated the identified statutes. In addition, these statutes do not confer liability on Defendant OCTA. As Defendant puts it, there is no recognized cause of action that may be stated based on alleged violation of the Civil Code sections alone. Based on the foregoing, the general demurrer is sustained with leave to amend as to each of the three causes of action in Plaintiff’s First Amended Complaint. Defendant shall give notice.
7.	2025-1517383 Skallerud vs. Petsmart LLC	Defendant Petsmart LLC’s demurrer to the third cause of action for bad faith denial of claim in plaintiff Robert Skallerud’s first amended complaint (“FAC”) is sustained with 15 days leave to amend. [ROA # 59.] <u>Plaintiff’s Complaint</u> This is essentially an action to recover for personal injury suffered by Plaintiff when he slipped and fell at a Petsmart. [FAC, ¶ GN-1.] Plaintiff asserts claims for negligence and premises liability on this basis. [FAC, first and second causes of action.]